

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Schiavo	Team: Team # 4	CCRB Case #: 201213536	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 09/03/2012 2:07 PM	Location of Incident: Eastern Parkway and Brooklyn Avenue	Precinct: 77	18 Mo. SOL 3/3/2014	EO SOL 3/3/2014	
Date/Time CV Reported Wed, 10/17/2012 2:14 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Wed, 10/17/2012 2:14 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Charles Arnone	03642	950021	071 PCT
2. An officer			

Officer(s)	Allegation	Investigator Recommendation
A. An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	
B. POM Charles Arnone	Force: PO Charles Arnone used physical force against § 87(2)(b)	
C. POM Charles Arnone	Discourtesy: PO Charles Arnone spoke discourteously to § 87(2)(b)	

Case Summary

On October 17, 2012, the CCRB received the complaint of § 87(2)(b) which he filed via US mail (encl. 3-6). On September 3, 2012, at 2:07 p.m., during the West Indian Day Parade, PO Charles Arnone of the 71st Precinct arrested § 87(2)(b) in the vicinity of Eastern Parkway and Brooklyn Avenue in Brooklyn. The following allegations resulted:

- **Allegation A – Discourtesy:** An officer spoke discourteously to § 87(2)(b) § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
- **Allegation B – Force:** PO Charles Arnone used physical force against § 87(2)(b) § 87(2)(g)
§ 87(2)(b)
- **Allegation C – Discourtesy:** PO Charles Arnone spoke discourteously to § 87(2)(b) § 87(2)(g)
§ 87(2)(b)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *black male who is 5’11” tall, weighs 178 pounds, and has black hair and brown eyes.*

CCRB Testimony

§ 87(2)(b) provided an initial statement when he filed his complaint (encl. 3-6), and he was interviewed at Rikers Island on March 6, 2013 (encl. 9-11). § 87(2)(g)
§ 87(2)(b) On September 3, 2012, at 2:07 p.m., § 87(2)(b) was with his brother, § 87(2)(b) and five friends whose names he did not know at Eastern Parkway and Brooklyn Avenue in Brooklyn. § 87(2)(b) did not know the phone numbers or addresses of any of his friends. § 87(2)(b) had been drinking alcohol virtually without cessation for approximately 24 hours prior to this time. Additionally, § 87(2)(b) had smoked approximately 22 marijuana joints during that period. § 87(2)(b) and his friends jumped over the barricade into the West Indian Day Parade and walked towards a float. PO1, an unidentified heavyset black male officer in uniform whom § 87(2)(b) could not describe any further, stated, “What the fuck are y’all doing back here? Get back over the gate.”

§ 87(2)(b) did not comply with these instructions. As a truck drove past with a float, § 87(2)(b) ran across Eastern Parkway. As he ran, four officers tackled § 87(2)(b) to the ground facedown. § 87(2)(b) momentarily blacked out because he was heavily intoxicated. A 5’9” white male who weighed 180 pounds, whom § 87(2)(b) identified as PO Charles Arnone, pushed § 87(2)(b)’s face into the ground and stated, “Don’t fucking move.” § 87(2)(b) was unable to describe any other officers. At that point, § 87(2)(b) was handcuffed. § 87(2)(b) § 87(2)(b)’s face was bruised, but he did not request or seek any medical treatment. Three officers held each of § 87(2)(b)’s arms and carried him towards a marked police van that was parked in the middle of the street. Halfway to the van, the officers placed § 87(2)(b) back on his feet. § 87(2)(b) tripped and fell on his face so that half of his body was underneath an ambulance.

PO Arnone grabbed § 87(2)(b)’s leg and pulled him out from under the ambulance. PO Arnone retrieved a gun that was on the street underneath the ambulance and said, “Motherfucker, you trying to kill me?” § 87(2)(b) denied that the gun belonged to him. The officers placed § 87(2)(b) in the van and transported him to the 71st Precinct stationhouse.

While he was being transported, § 87(2)(b) explained that he was not carrying a gun and was not trying to kill PO Arnone. PO Arnone told him, “Shut the fuck up. You have the right to remain silent. I advise you to use that right.” § 87(2)(b) was charged § 87(2)(b)

Witness: § 87(2)(b)

- § 87(2)(b), § 87(2)(b) 's brother, is a § 87(2)(b) black male.

CCRB Testimony

On May 3, 2013, § 87(2)(b) provided a phone statement (encl. 12). On September 3, 2012, § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) jumped the barricade at the West Indian Day Parade near Eastern Parkway and Brooklyn Avenue in Brooklyn. § 87(2)(b) was not carrying a gun. As § 87(2)(b) walked towards a float, he realized that § 87(2)(b) was no longer with the group. § 87(2)(b) and § 87(2)(b) told § 87(2)(b) to turn around. § 87(2)(b) turned around and saw four uniformed officers whom he could not describe holding § 87(2)(b) by the arms and legs. § 87(2)(b) was struggling and moving his body from side to side. During the struggle, the officers accidentally dropped § 87(2)(b) to the ground. The officers jumped on top of him and handcuffed him. They then placed him into a nearby police vehicle.

Witness: § 87(2)(b)

- § 87(2)(b) is a friend of § 87(2)(b)

CCRB Testimony

On July 16, 2013, § 87(2)(b) provided a phone statement (encl. 13). § 87(2)(b) and § 87(2)(b) were the first in the group of about six people to jump over the barricade, and § 87(2)(b) was the last. None of the officers who were at the scene protested to anyone. § 87(2)(b) did not hear an officer say anything to § 87(2)(b). § 87(2)(b) crossed the parade route and was on the other side of a float. After § 87(2)(b) jumped over the barricade, he observed four to five officers trying to carry § 87(2)(b) who was in handcuffs. § 87(2)(b) was standing approximately 40 feet away from § 87(2)(b) as this happened. § 87(2)(b) did not see how § 87(2)(b) was handcuffed or taken to the ground. Most of § 87(2)(b) 's body was off of the ground, but his leg was dangling down and dragging along the ground. § 87(2)(b) was shaking his body and telling the officers to get off of him. The officers responded, “Stop shaking!” § 87(2)(b) ran up to the officers and said that § 87(2)(b) was his friend. The officers told him to get back.

Attempts to Contact Civilian

On July 16, 2013, and August 1, 2013, the CCRB attempted to contact § 87(2)(b) at the number that § 87(2)(b) provided. On both occasions, an automated recording stated that the number was not reachable.

NYPD Statements:

Subject Officer: PO CHARLES ARNONE

- PO Arnone is a § 87(2)(b)-old white male who is 5'7" tall, weighs 150 pounds, and has brown hair and brown eyes.
- PO Arnone worked alone from 9:10 a.m. on September 3, 2012, to 2:50 a.m. on September 4, 2012. He was in uniform and was assigned to pedestrian safety for the West Indian Day

Parade on foot at the corner of Eastern Parkway and Brooklyn Avenue.

Memo Book

According to PO Arnone's memo book (encl. 14-16), at 2:02 p.m., a male was acting disorderly through the West Indian Day Parade. At 2:07 p.m., PO Arnone arrested § 87(2)(b) and recovered the following items from his person: a loaded firearm, a knife with a blade greater than four inches, and a quantity of marijuana. At 2:10 p.m., PO Arnone was at the stationhouse for arrest processing.

Online Booking Sheet

According to the online booking sheet for § 87(2)(b)'s arrest (encl. 17-19), during the West Indian Day Parade, § 87(2)(b) walked against the parade route in front of floats, causing a hazardous and dangerous condition. As PO Arnone approached § 87(2)(b), § 87(2)(b) flailed his arms and elbows at PO Arnone and tried to flee. As PO Arnone effectuated the arrest, § 87(2)(b) flailed his arms and kicked at PO Arnone. The field search revealed that § 87(2)(b) was in possession of a loaded firearm, a folding knife with a blade greater than four inches, and five plastic Ziploc bags containing marijuana on his person. § 87(2)(b) was charged § 87(2)(b)

CCRB Statement

PO Arnone was interviewed at the CCRB on April 26, 2013 (encl. 20-21). On September 3, 2012, at 2:02 p.m., PO Arnone was at his foot post for the parade detail at Eastern Parkway and Brooklyn Avenue in Brooklyn. He observed § 87(2)(b) jump the barrier and start to cross the parade route. Several unidentified officers attempted to stop § 87(2)(b). PO Arnone did not recall whether any of the officers were black males. He did not hear an officer say, "What the fuck are you doing back here?" or use any profanity. PO Arnone did not hear any profanity. § 87(2)(b) flailed his arms at the officers, but did not strike any of them. He then ran across the parade route. PO Arnone pursued § 87(2)(b) who discarded Ziploc bags of marijuana as he ran. After about 25 feet, PO Arnone caught up to § 87(2)(b) in the middle of the parade route. PO Arnone slowed down and tackled § 87(2)(b) to the ground by grabbing § 87(2)(b)'s right arm with his right hand.

§ 87(2)(b) flailed his arms on the ground, but PO Arnone was able to handcuff him without the assistance of other officers in less than 30 seconds. PO Arnone started to conduct a field search, at which point an unknown detail captain approached and instructed PO Arnone to conduct the field search in a different location with fewer bystanders. § 87(2)(b) attempted to pick § 87(2)(b) up off of the ground, but § 87(2)(b) tucked his knees up to his chest and refused to stand up. § 87(2)(b) and two other officers whom he did not know carried § 87(2)(b) to the southeast corner of the intersection, where there was a vehicle. As the officers lowered § 87(2)(b) back on the ground near the vehicle, § 87(2)(b) wriggled free and fell on his back.

As § 87(2)(b) fell, a firearm fell out of an unknown location from the back of his pants on his right side. The firearm landed less than a foot from § 87(2)(b). PO Arnone did not say, "Don't fucking move," or "Motherfucker, you trying to kill me?" or use any profanity. § 87(2)(b) attempted to gain possession of the firearm with his hands while rear cuffed. PO Arnone grabbed the firearm with his left hand and punched § 87(2)(b) in the stomach with his right hand. PO Arnone did not use any other force. PO Arnone transported § 87(2)(b) to the 71st Precinct stationhouse and processed his arrest. PO Arnone did not use any profanity. At no point did § 87(2)(b) deny ownership of the firearm. He appeared very nervous because he was sweating and shifting his eyes. PO Arnone did not tell § 87(2)(b) to "shut the fuck up" during

the transport.

NYPD Documents

Detail Roster

On July 30, 2013, the IAB/CCRB liaison informed the undersigned investigator that none of the possible relevant commands could locate the detail roster for the West Indian Day Parade on September 3, 2012.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- A notice of claim inquiry is pending.

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. 2b).

Subject Officer CCRB History

- PO Arnone has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 2a).

Conclusion

Identification of Subject Officer

The NYPD reported to the CCRB that there were no existing copies of the detail roster for the 2012 West Indian Day Parade. PO Arnone could not identify any other officers on the scene. [§ 87(2)(b)] who was admittedly highly intoxicated during the incident, only provided a vague description of the officer who allegedly cursed at him. [§ 87(2)(g)]

[§ 87(2)(b)] identified PO Arnone by name, and PO Arnone acknowledged interacting with [§ 87(2)(b)] [§ 87(2)(g)]

Investigative Findings and Recommendations

Allegation A – Discourtesy: An officer spoke discourteously to [§ 87(2)(b)]

[§ 87(2)(b)] alleged that an officer used profanity towards him after [§ 87(2)(b)] jumped the barricade at the West Indian Day Parade. [§ 87(2)(g)]

Allegation B – Force: PO Charles Arnone used physical force against [§ 87(2)(b)]

[§ 87(2)(b)] alleged that PO Arnone tackled him and pushed his face into the ground. Neither of the witnesses observed how [§ 87(2)(b)] was initially taken to the ground and only observed officers carrying [§ 87(2)(b)] PO Arnone acknowledged that he tackled [§ 87(2)(b)] after [§ 87(2)(b)] fled on foot. [§ 87(2)(b)] acknowledged refusing an officer's instructions to

get off of the parade route and then running across the parade route. § 87(2)(g) Both of the witnesses described § 87(2)(b) moving his body from side to side as officers carried him. According to Patrol Guide Procedure 203-11 (encl. 1), an officer must use the minimum force necessary to effect an arrest.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation C – Discourtesy: PO Charles Arnone spoke discourteously to § 87(2)(b)
§ 87(2)(b) alleged that PO Arnone made multiple discourteous remarks during their interaction. Neither of the witnesses who provided phone statements were able to speak to whether or not any officer used profanity towards § 87(2)(b) PO Arnone denied using any discourteous language. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date